

EU SETTLEMENT SCHEME PRE-SETTLED STATUS



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EU SETTLEMENT SCHEME PRE-SETTLED STATUS

The EU Settlement Scheme is open to resident EU, EEA and Swiss citizens and their family members who started living in the UK by 31 December 2020 (the end of the 'Withdrawal Period') and who wish to remain in the UK after 30 June 2021 (the end of the 'Grace Period').

Eligible persons who have not completed a continuous 5 year period of qualifying residence in the UK will be granted a period of 5 years' limited leave, also known as Pre-Settled Status. An application for Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) can be submitted once a 5 year period of qualifying residence in the UK has been completed.

The EU Settlement Scheme is also open to joining family members, who have an EU, EEA or Swiss relative who started living in the UK by 31 December 2020 where the relevant relationship was formed prior to this date. They will first have to apply for an EU Settlement Scheme Family Permit (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-family-permit/>) to enter the UK and must then apply for Pre-Settled Status to remain living in the UK.

Deadline for Applying to the EU Settlement Scheme

The deadline for making an application to the EU Settlement Scheme for EEA nationals and their family members who were resident in the UK prior to 31 December 2020 was 30 June 2021. Those who were not yet eligible for Settled Status by that date were able to apply for Pre-Settled Status, and subsequently apply for Settled Status after a continuous qualifying period of residence of 5 years.

If an application was not made for either Settled or Pre-Settled Status by this date, then you may still be able to apply if there are reasonable grounds for making a late application. See **Updated Guidance on Late EU Settlement Scheme Applications** (<https://immigrationbarrister.co.uk/updated-guidance-on-late-eu-settlement-scheme-applications/>) and **Update on EU Settlement Scheme Deadlines and Late Applications** (<https://immigrationbarrister.co.uk/update-on-eu-settlement-scheme-deadlines-and-late-applications/>).

Swiss nationals will be able to bring a spouse or civil partner to the UK until 31 December 2025 if the relationship began between 31 December 2020 and 31 December 2025 and the relationship is continuing.

Family members of a British citizen who lived outside the UK in an EEA country with the British citizen needed to apply to the EU Settlement Scheme by 29 March 2022. However, there is scope for late applications to be made here too. See *New Guidance on Late Surinder Singh Applications* (<https://immigrationbarrister.co.uk/new-guidance-on-late-surinder-singh-applications/>).

Unless you are a visitor applying as a joining family member, if you have limited leave to enter or remain in the UK which expires after 30 June 2021 you must apply before this leave expires. If you are a visitor applying as a joining family member, you will need to apply within 3 months of entry (subject to any reasonable grounds for any delay).

- **Updated Guidance on Late EU Settlement Scheme Applications** (<https://immigrationbarrister.co.uk/updated-guidance-on-late-eu-settlement-scheme-applications/>)
- **Update on EU Settlement Scheme Deadlines and Late Applications** (<https://immigrationbarrister.co.uk/update-on-eu-settlement-scheme-deadlines-and-late-applications/>)
- **New Guidance on Late Surinder Singh Applications** (<https://immigrationbarrister.co.uk/new-guidance-on-late-surinder-singh-applications/>)
- **Avoiding Delays in EU Settlement Scheme Applications** (<https://immigrationbarrister.co.uk/avoiding-delays-in-eu-settlement-scheme-applications/>)
- **The Status of EU Settlement Scheme Applicants After 30 June 2021** (<https://immigrationbarrister.co.uk/the-status-of-eu-settlement-scheme-applicants-after-30-june-2021/>)

Requirements for Pre-Settled Status

In order to qualify for Pre-Settled Status you will need to satisfy UK Visas & Immigration that:

- You are a relevant EEA citizen; or
- You are a family member of a relevant EEA citizen; or

- You are a family member who has retained the right of residence by virtue of a relationship with a relevant EEA citizen; or
- You are a person with a derivative right to reside; or
- You are a person with a Zambrano right to reside; and
- You started living in the UK by 31 December 2020; and
- You are not eligible for Settled Status under the EU Settlement Scheme solely because you have not completed a continuous qualifying period of residence of at least 5 years.

In order to qualify for Pre-Settled Status as a joining family member you will need to satisfy UK Visas & Immigration that:

- You are the joining family member of a relevant sponsor; or
- You are a family member who has retained the right of residence by virtue of a relationship with a relevant sponsor; and
- You are not eligible for Settled Status under the EU Settlement Scheme solely because you have not completed a continuous qualifying period of residence of at least 5 years.

Consideration should also be given as to whether an application for an EU Settlement Scheme Family Permit (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-family-permit/>) should first be made where the joining family member resides abroad.

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your EU Settlement Scheme Pre-Settled Status application with one of our immigration barristers, contact our EU Settlement Scheme lawyers on 0203 617 9173 or complete our enquiry form below.

What is Pre-Settled Status?

Pre-Settled Status is granted to applicants to the EU Settlement Scheme who are not able to demonstrate 5 years' continuous residence in the UK.

You will need to have started living in the UK by 31 December 2020. If you are a joining family member, your EU, EEA or Swiss family member should have been residing in the UK and your relationship formed prior to this date.

You will be able to stay in the UK for a further 5 years from the date you are granted Pre-Settled Status.

If you have Pre-Settled Status, you will be able to spend up to 5 years outside the UK without losing your status. However, you will need to maintain 'continuous residence' if you want to qualify for Settled Status. See our **EUSS Settled Status**

(<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) page for further details.

Once you can demonstrate 5 years' continuous residence in the UK you will be eligible to apply for Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>). This application must be submitted before your Pre-Settled Status expires.

Who Should Apply to the EU Settlement Scheme?

You should apply to the EU Settlement Scheme if you are an EU, EEA or Swiss citizen.

You should also apply to the EU Settlement Scheme if you are not an EU, EEA or Swiss citizen but you are a family member of an EU, EEA or Swiss citizen.

Relevant family members include the spouse, civil partner or unmarried partner of an EU, EEA or Swiss citizen, as well as the child, grandchild or great-grandchild under 21 years old, dependent child over the age of 21, dependent parent, grandparent or great-grandparent or dependent relative of either an EU, EEA or Swiss citizen or their spouse or civil partner.

Who Else Can Apply to the EU Settlement Scheme?

You may be eligible to apply to the EU Settlement Scheme if you are not an EU, EEA or Swiss citizen and:

- You are a family member of an EU, EEA or Swiss citizen who has retained the right of residence by virtue of a relationship with a relevant EEA citizen who has passed away or from whom you have separated or where the family relationship has broken down;
- You are a family member of a British citizen and you lived outside the UK in an EEA country together;
- You are a family member of a British citizen who also has EU, EEA or Swiss citizenship and who lived in the UK as an EU, EEA or Swiss citizen before getting British citizenship;
- You are the primary carer of a British, EU, EEA or Swiss citizen;
- You are the child of an EU, EEA or Swiss citizen who used to live and work in the UK, or the child's primary carer.

Who Does Not Need to Apply to the EU Settlement Scheme?

You do not need to apply to the EU Settlement Scheme if you have been granted indefinite leave to enter or remain in the UK or you have Irish citizenship (including British and Irish 'dual citizenship').

You cannot apply if you have British citizenship or are exempt from immigration control.

You also do not need to apply to the EU Settlement Scheme if you work in the UK but do not live here (referred to as a 'Frontier Worker'). You should instead consider applying for a **Frontier Worker Permit** (<https://immigrationbarrister.co.uk/personal-immigration/other-work-visas/frontier-worker-permit/>). Non-EEA citizen family members of Frontier Workers should apply to the EU Settlement Scheme.

Pre-Settled Status Rights

If you are granted Pre-Settled Status you will have a full right to work, study, live and travel in and out of the UK.

Applying From Outside the UK

It is possible to apply for status under the EU Settlement Scheme from inside or outside the UK, however notice should be taken of the deadlines set out above and the information about late applications (<https://immigrationbarrister.co.uk/eu-settlement-scheme-deadlines-and-late-applications/>). Non-EEA nationals need to meet additional requirements to be eligible to apply from outside the UK.

Application Fee for an EU Settlement Scheme Pre-Settled Status Application

The Home Office does not charge an application fee for an EU Settlement Scheme Pre-Settled Status application.

Applicants for EU Settlement Scheme Pre-Settled Status are also not required to pay the Immigration Health Charge.

EU Settlement Scheme Processing Times

The Home Office states (<https://www.gov.uk/government/publications/eu-settlement-scheme-application-processing-times/eu-settlement-scheme-pilot-current-expected-processing-times-for-applications>) that it typically takes about 5 working days for an EU Settlement Scheme application to be processed, if no further information is required. However, it can take up to 1 month for a decision to be made. However, it can take considerably longer due to well-publicised delays in the processing of applications under the Scheme.

What if My EU Settlement Scheme Application Has Been Refused?

If your application has been refused, you will have a **right of appeal to the First-tier Tribunal (Immigration & Asylum Chamber)** (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>) or

administrative review.

How Our Immigration Barristers Can Help

Our immigration barristers regularly assist EU, EEA and Swiss citizens and their family members to apply to the EU Settlement Scheme.

Whether you require expert advice on the requirements of the EU Settlement Scheme, an independent assessment of your prospects of qualifying for the EU Settlement Scheme or professional assistance with preparing an EU Settlement Scheme application or appeal, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to EU, EEA and Swiss citizens and their family members as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for EU Settlement Scheme Family Permits



Applications for EU Settlement Scheme Settled Status



Applications for British Citizenship



Fresh applications, Appeals, Administrative Reviews and Judicial Reviews



WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our EEA Nationals and Family Members immigration team on 0203 617 9173 or complete our enquiry form.

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(<https://immigrationbarrister.co.uk/electronic-travel-authorisation-eta-requirement-for-european-visitors-to-the-uk-from-2-april-2025/>)

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